

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS AMERICA, INC.
Complainant

VS.

SM LINE CORPORATION
Respondent

**RESPONDENT'S MOTION FOR CONFIDENTIAL TREATMENT
OF PORTIONS OF ITS RENEWED MOTION FOR LEAVE TO FILE
THIRD PARTY COMPLAINT AND EXHIBITS**

Respondent SM Line Corporation (“SM Line”) hereby moves pursuant to 46 C.F.R. §§ 502.69 and 502.5(b) to seek confidential treatment of certain additional portions of Respondent’s Renewed Motion for Leave to File Third Party Complaint (“Renewed Motion for Leave”) and Exhibits A, Exhibit B, Exhibit C, Exhibit D, Exhibit F and Appendix A submitted therewith. (“Motion”).

SM Line’s Motion for Leave references to the Service Agreements (“Agreements”) and the Service Contracts (“Contracts”) between SM Line and the proposed third-parties. The proposed Third-Party Complaint attached to the Motion as Appendix A also reveals the identity of the proposed third-parties.

The Agreements and the Contracts attached to SM Line’s Renewed Motion for Leave as Exhibits A, Exhibit B, Exhibit C and Exhibit D are subject to confidentiality provisions that prevent the disclosure of their terms and related information, including the identities of the parties to the

Agreements and Contracts, unless certain conditions are met. As to the date of this Motion the conditions for disclosure have not been met.

Additionally, the contractually agreed upon rates that are enclosed or referred to in the Agreements and Contracts were privately negotiated between the SM Line and the respective proposed third-parties and are, therefore, also confidential. Disclosure of the Rates would damage the commercial interests and competitiveness of the parties.

For the foregoing reasons, SM Line respectfully requests that:

1. The terms of the Service Agreements, as well as the terms of the Service Contracts that are attached as Exhibits A, Exhibit B, Exhibit C, and Exhibit D to SM Line's Renewed Motion for Leave, as well as the identity of the parties as referred to in the same exhibits and in the Third Party Complaint ("Appendix A") - be kept confidential.
2. Be allowed to submit a public redacted version of the material for which it seeks confidentiality pursuant to 46 C.F.R. § 502.5(a)(2).

Dated: November 14, 2023

Respectfully submitted,

/s/Vincent M. DeOrchis

/s/Wook Chung

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Counsel for Respondent

SM Line Corporation

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 14th day of November 2023, the foregoing document was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
Presiding Administrative Law Judge
judges@fmc.gov

Complainant
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/s/Wook Chung_____